

rights. And even if they exist, they are already sold out to vote-bank politics."

Investigations show that the Kshatriyas never claimed to be tribals till the '70s when they subtly started claiming themselves to be Hindu Bhils while mentioning their caste in 73A of the land revenue code. This law was framed in 1961 in order to prevent tribals from selling their farmland to non-tribals and was meant to prevent land sharks from swallowing the farmlands of tribals. They also started mentioning Hindu Bhil as their caste while admitting their children to schools. Officials of the social welfare and the local revenue departments who were supposed to check this fraud turned a blind eye probably because they themselves were OBC Kshatriyas.

Politicians, as usual, were guided by vote-bank politics. Prabodhkant Pandya, former Janata Dal and BJP MLA from Santrampur issued hundreds of certificates certifying OBC Kshatriyas as tribals. But as the spectre of Santrampur turning into a ST reserved seat loomed large, Pandya, a Brahmin, wrote to the state government seeking disqualification of the tribal status of the Kshatriyas. The reason—once Santrampur becomes an ST reserved seat, Pandya won't be able to contest from there. Former Congress MLA of Santrampur, Man Singh Bhamat, a tribal, chose to abandon the cause of his own tribe by recommending ST status to non-STs. If the Santrampur seat turns into an ST seat, he would be the one to gain the most as he is a genuine tribal and won't have any competitors from the upper castes. INDIA TODAY is in possession of certificates signed by Pandya as well as Bhamat to non-tribals certifying them as tribals.

Non-tribals started getting ST certificates at a steady pace in the early '90s when a minister in the then Congress government, who was a non-tribal-turned-tribal, got the state government to issue an order that on proving a direct blood relation with a

tribal, a non-tribal could get an ST certificate. This clause was withdrawn by the BJP government in 1995 and it simultaneously issued directives to district officials not to issue ST certificates to anyone who had entered himself as a tribal under the Land Revenue Code after 1965. But Padaria alleges that revenue and welfare officials issued ST certificates to Kshatriyas even as late as the assembly elections in 2007. Forest and Tribal Welfare Minister Mangubhai Patel says: "We know a lot of wrong has happened on his score. We are trying to correct it whenever we get complaints".

The issue has become sensitive as there are around 5,000 government employees from Panchmahal and Vadodra districts who are OBC Kshatriyas but had secured jobs on the

basis of ST certificates. In the Kadana Talika Panchayat, where the actual tribal population is less than three per cent, there are as many as 11 reserved seats for tribals out of a total of 15 because of the high percentage of fake tribals. A senior tribal official, who is fighting tooth and nail to get the Kshatriyas out of the ST category says: "The government should delete the names of the Kshatriyas from the ST category so that further misuse stops while declaring amnesty against penal action for government employees and elected representatives who have secured jobs or got elected as tribals. But reservation-based promotion should be suspended for such employees. This would provide justice to genuine tribals and at the same time prevent a backlash in the Kshatriya community due to the fear of penal action, which could even mean imprisonment."

It is clear that never in the past had the social reform tool of caste-based reservation been misused in such a blatant manner.



▲ NARANBHAI LALLU RAVAL (left) VILLAGE GOTHIM, SANTRAMPUR

An inquiry found Raval to be a fake tribal and the vigilance officer has asked for a police case to be filed against him for manipulation of documents to get a tribal status. He had defeated a tribal Natwarbhai Taviad, 45, to become the sarpanch of Gothim village.

"If the tribal status is withdrawn, a bloody situation like the Gujar agitation might happen."



AMIT PADARIA VICE-PRESIDENT, KADANA TALUKA PANCHAYAT